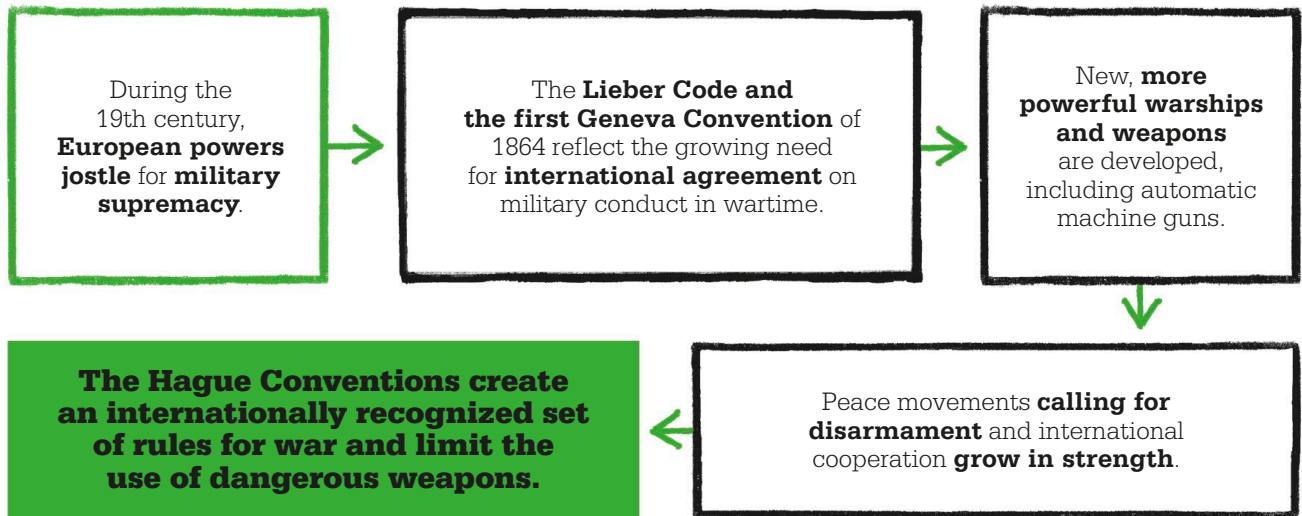


See also: The Geneva Conventions 152–155 ■ The Nuremberg trials 202–209 ■ The United Nations and International Court of Justice 212–219 ■ The Universal Declaration of Human Rights 222–229 ■ The International Criminal Court 298–303



France, Germany, and Russia. Under Otto von Bismarck (1815–1898), newly unified Germany adopted militarism—the idea that a state should use its armies to aggressively advance its national interests.

First steps

In 1863, during the Civil War (1861–1865), President Abraham Lincoln issued the Lieber Code, the first attempt to establish the rules of war. The Code was formulated by political philosopher Francis Lieber and was widely admired.

In the aftermath of the bloody Franco-Prussian War of 1870–1871, the Code inspired Czar Alexander II of Russia to hold a conference of European states in Brussels in 1874 to draft an international version. The aim of the conference, which was attended by representatives

from 15 nations, was to find a way of restoring the fragile balance of power in Europe and define terms of engagement for future warfare. It adopted codes that covered the obligations of occupying powers; defined who should be recognized as combatants; established rules for bombardments and sieges; and stated the duty of nations to treat prisoners of war humanely. The

conference laid the foundations for the later development of international humanitarian law at the Hague Peace Conference in 1899.

Because Britain, Germany, and Spain did not wish to be bound by the Brussels Declaration, it was not ratified. After this failure, the Institute of International Law (IIL), which had been founded in 1873, studied the draft agreement and »

The Battle of Fort Wagner was one of many bloody episodes in the Civil War. It was fought in 1863, the same year that President Lincoln issued the Lieber Code.

